Acme Master Service Agreement

Version 4.2, effective January 1, 2026

1. Scope

This Master Service Agreement (the Agreement) governs access to the Acme platform by the customer named on the Order Form. It applies to the Starter, Premium and Strategic plans. Where an Order Form and this Agreement conflict, the Order Form controls for that order only.

Acme provides the subscribed services, standard support for the purchased plan, and the documentation published at docs.acme.example. Professional services such as custom integrations are ordered separately under a statement of work.

2. Term and Renewal

The initial subscription term is 12 months from the start date on the Order Form, unless the Order Form states a multi-year term. Strategic plans may be signed for 24 or 36 months.

Subscriptions renew automatically for successive 12-month terms unless either party gives written notice of non-renewal at least 60 days before the end of the current term. Notice sent by email to legal@acme.example is sufficient.

Acme may increase fees at renewal by no more than 7 percent over the prior term, and must give at least 90 days written notice of any increase.

3. Fees and Payment

Subscription fees are invoiced annually in advance. Invoices are payable within 30 days of the invoice date (net 30). Fees are stated in USD and exclude taxes, which the customer pays unless it provides a valid exemption certificate.

Overdue amounts accrue interest of 1.5 percent per month or the maximum rate allowed by law, whichever is lower. If an invoice is more than 30 days overdue, Acme may suspend the services after giving 15 days written notice. Suspension does not change the customer's payment obligations.

The customer must dispute an invoice in good faith within 20 days of receiving it. Undisputed portions remain payable on the original due date. Usage above the plan allowance is billed monthly in arrears at the overage rates in the current price list.

4. Service Level Agreement

Acme commits to monthly uptime of 99.9 percent for the Premium plan and 99.95 percent for the Strategic plan. The Starter plan has no uptime commitment. Uptime is measured per calendar month by Acme's external monitoring of the production API and web application.

Scheduled maintenance is excluded from downtime. Maintenance runs on Sundays between 02:00 and 04:00 UTC and is announced at least 72 hours in advance on status.acme.example. Downtime caused by the customer, force majeure or third-party networks outside Acme's control is also excluded.

If monthly uptime falls below the commitment, the customer receives a service credit on its next invoice according to these tiers.

Uptime from 99.0 percent up to the commitment earns a credit of 10 percent of the monthly fee.

Uptime from 95.0 percent up to 99.0 percent earns a credit of 25 percent of the monthly fee.

Uptime below 95.0 percent earns a credit of 50 percent of the monthly fee.

Service credits are capped at 50 percent of the monthly fee for the affected month. The customer must request a credit within 30 days after the end of the affected month. Service credits are the customer's sole remedy for missing the uptime commitment.

5. Data Protection

The customer owns all customer data. Acme processes customer data only to provide the services and as described in the Data Processing Addendum.

Customer data is hosted in the region selected on the Order Form: United States (AWS us-east-1) or European Union (AWS eu-central-1). Acme does not move customer data out of the selected region except at the customer's written request.

Acme notifies the customer of a confirmed security breach affecting customer data within 48 hours of confirming it. Acme gives at least 30 days notice before adding a new subprocessor, and the customer may object in writing during that period.

After the Agreement ends, the customer may export its data for 30 days. Acme deletes remaining customer data within 30 days after the export window closes, except where law requires longer retention.

6. Termination

Either party may terminate the Agreement for material breach if the breach is not cured within 30 days of written notice. If the customer terminates because of Acme's uncured breach, Acme refunds prepaid fees for the remaining term on a pro rata basis. Otherwise, fees paid are non-refundable.

7. Limitation of Liability

Each party's total liability under the Agreement is limited to the fees paid or payable by the customer in the 12 months before the event giving rise to the claim. For breaches of the data protection section, the cap is two times those fees. Neither party is liable for indirect or consequential damages, including lost profits.

The caps do not apply to a party's indemnification obligations, to breach of confidentiality, or to the customer's obligation to pay fees.

8. Governing Law

The Agreement is governed by the laws of the State of Delaware, without regard to conflict of laws rules. Disputes are resolved in the state or federal courts located in Wilmington, Delaware.